(2) (01)

REGISTERED A.D.
ACCEPTANCE OF TENDER IN LIEU OF DGOF FORM 4

S.O. NO. 2017LPC063 Dated : 05/02/2018

M/s NIHVA TECHNOLOGIES PVT LTD
187,G-BLOCK THERMAX CHOWK,
ABOVE RENAULT SHOWROOM,MIDC
CHINCHWAD,PUNE 411019

FAX :
PHONE :
V.CODE : 411019N006

ORDNANCE FACTORY
DEHU ROAD

GST No.: 27AAALO0007B1ZS
PHONE : 020-27671206/09
FAX : 020-27671616
order for any clarification
and quote SO No. for our ref.

1. The undersigned for and on behalf of the PRESIDENT OF INDIA hereby accepts your Quotaion No. Dated 05/02/2018 and Your letters dated in response to our Tender Enquiry No. 2017000607 and our letter of intent no. dated for supplies/services as detailed in the schedule.
2. Security Deposit is waived.
3. SCHEDULE

Sl No	Article/Services to be supplied	Unit	Rate in Figures and in words Rs. P.	QTY Ordered	Value Rs. P.
1	2070000255 PNEUMATIC SYSTEM WITH LIN EAR MOVEMENT OF CYLINDER FOR TAIL UNIT ASSEMBLY OF M B 81MM ILLG 2A,CON81ST ING OF PNEUMATIC CYLINDER (WORKING CAPACITY 6 BAR / STROKE 120MM (MAKE - SM C/ FIESTO).	NO	Rs192968.750 RUPEES ONE LAC NINETY TWO THOUSAND NINE HUNDR ED AND SIXTY EIGHT AND PAISE SEVENTY FIVE ONLY	1.000 (NO)	192968.75
	GST (CGST/SGST/IGST/UTGST)- 28.00% (OR AS APPLICABLE AT THE TIME OF SUPPLY)				54031.25
	END USE :		TOTAL :		247000.00

Grand total details :-

Total value of Item no 1	247000.00
Grand Total	247000.00

4. Delivery Schedule : - You should supply the store immediatly but not latter than the date shown below against quantity.

ITEM CODE	DATE	QUANTITY
2070000255	30/04/2018	1.000

L.D. CLAUSE : IF THE CONTRACTOR FAILS TO DELIVER THE STORES/SERVICE OR ANY INSTALLMENT THEREOF WITHIN DP OR AT ANY TIME REPUDIATES THE CONTRACT BEFORE EXPIRY OF SUCH PERIOD, THE CFA, WITHOUT PREJEDICE TO THE RIGHT OF THE PURCHASER TO ANY OTHER REMEDY FOR BREACH OF CONTRACT, MAY RECOVER FROM THE CONTRACTOR A SUM EQUIVALENT TO 0.5% OF THE PRICES OF ANY STORE/SERVICE WHICH THE CONTRACTOR HAS FAILED TO DELIVER WITHIN THE PERIOD AGREED FOR DELIVERY IN THE CONTRACT. FOR EACH WEEK OR PART THEREOF DURING WHICH THE DELIVERY OF SUCH STORE/SERVICE MAY BE IN ARREARS, WHERE DELIVERY THEREOF IS ACCEPTED AFTER EXPIRY OF THE AFORESAID PERIOD. THE TOTAL DAMAGES SHALL NOT EXCEED VALUE OF 10% OF THE DELAYED STORE/ SERVICE BEYOND ORIGINAL DELIVERY PERIOD. THE L.D.CANNOT EXCEED THE AMOUNT

STATION : DEHU ROAD DATED : 05/02/2017

A K RAWAT
Asst. WORKS MANAGER
FOR GENERAL MANAGER

Scanned by CamScanner

FOR AND ON BEHALF OF THE PRESIDENT OF INDIA

CONTD. ON PAGE 2

S.O. NO. 2017LPC063 Dated : 05/02/2018

STIPULATED IN THE CONTRACT.

GUAGE PARTICULARS : Not Applicable

JURISDICTION OF COURT :-
THE CIVIL COURT AT PUNE SHALL ONLY HAVE JURISDICTION TO TRY ALL CIVIL SUITS, LEGAL PROCEEDINGS ARISING OUT OF OR ANY WAY TOUCHING OR CONCERNING THIS AGREEMENT.

NOTE (1) :- SUPPLY SHOULD BE STRICTLY AS PER THE LATEST/CURRENT DRAWINGS & SPECIFICATIONS WHICH SHOULD BE OBTAINED FROM ANSP.
NOTE (2) :- QUALITY PLAN SHALL BE SUBMITTED TO THE FACTORY BEFORE COMMENCING BULK SUPPLY.
NOTE (3) :- ALL THE CONTRACTORS ARE HEREBY ADVISED TO DECLARE CONSIGNMENT VALUE ON THE RR/PWB, PAY PERCENTAGE CHANGES ON TOTAL CONSIGNMENT AND/OR TO INSURE THE CONSIGNMENT.

THE FIRM SHOULD COLLECT THEIR REJECTED STORE(S),IF ANY, WITHIN 45 DAYS FROM THE DATE O INTIMATION FROM THE FACTORY. IN CASE THE STORE(S)IS NOT LIFTED WITHIN 45 DAYS THE STOR WILL BE DISPOSED OFF SUITABLY & NO CLAIM BY THE FIRM WOULD BE ADMITTED.

ARBITRATION CLAUSE :
(i) All disputes or differences arising out of or in connection with the present contract including the one connected with the validity of the present contract or any part thereof,should be settled by bilateral discussions.
(ii) Any dispute,disagreement of question arising of or relating to this contract or relating to construction or performance (expect as to any matter the decision or determinaton whereof is provided for by these conditions),which cannot be settled amicably, to be referred by concerned party to Director General Ordnance Factories Government of India, Ordnance Factory Board,10-A S.K.Bose Road, KOLKATA : 700001 for appointment of the sole arbitrator.The arbitrator so appointed shall be a Government servant who had not dealt with matter to which this agreement relates and in course of his duties had not expressed views on all or any of the matter in dispules or differences.The Award of the Sole Arbitrator shall be final and binding on the parties.
(iii) The venue of the arbitration shall be at place of concerned Factory.

STATION : DEHU ROAD DATED : 05/02/2017

A K RAWAT
Asst. WORKS MANAGER
FOR GENERAL MANAGER
FOR AND ON BEHALF OF THE PRESIDENT OF INDIA

Scanned by CamScanner

SO. No. : 2017LPC063 Date : 05/02/2018

TERMS AND CONDITIONS : -

1 INSPECTION :-

(c) Inspecting Officer : THE GM/OFDR OR HIS AUTH.REP.
(d) Place of Inspection : At Ordnance Factory Dehu Road
(f) Please find Special Inspection Clause ODR No.381a (to be read in conjunction with form OFDR-288) enclosed with supply order and inspection. Requirements given in DCRI(A)Form no 112 for compliance.

2 PAYMENT :- 100% payment by crossed chequewill be made within 30 days on receipt of stores in our factory in satisfactory conditions and acceptance thereof.

3 ADVANCE SAMPLE :- Not Required

4 OPTION CLAUSE :-Not Applicable

5 PRICE VARIATION :-
Price is firm and fixed.
PV clause is not applicable.

Scanned by CamScanner

TERMS AND CONDITIONS : -

6 BANK GAURANTEE :-Not Applicable

7 OCTROI EXEMPTION CERTIFICATE :- Will be issued.

8 PACKING AND MARKING :-
The store should be supplied duly packed as per the drawing,specification and to the satisfaction of the Inspecting Officer.

9 DELIVERY TERMS : O.F. DEHU ROAD

10 MODE OF DESPATCH :-
Transport charges upto Dehu Road will be borne by Firm.
Date of receipt of material at OFDR will be the date of delivery

11 TRADE ASSISTANCE : Not Applicable

12 ESSENTIAL CERTIFICATE : will not be issued
NOTE :- FINAL PSD AMOUNT WILL BE AMENDED AFTER CLARIFICATION OF GST

13 GENERAL TERMS :-
a) No other terms and conditions of your quotation will apply to this contract.

b) General terms and conditions governing the contract will be applicable as per the schedule attached.

c) Please acknowledge receipt of the Supply Order on the proforma attached within 30 days of issue of Supply Order failling which it will be presumed that order is acceptable to you as per the terms and conditions mentioned therein.

d) The contractor shall be bound to execute the earlier order(s) if any placed on them for the same item before commencing supplies against this contract and any supplies offered by the contractor shall be deemed to be supplies against the earlier orders till their earlier orders are fully satisfied.

e) The contractor shall submit an undertaking that the firm will not take copies of drawings supplied to them and return them after the work is over.
f) The contractor shall provide all the testig facilities free of cost to the inspecting officer for the test to be carried out by him.
g) All the terms and condition referred in the tender enquiry will be applicable to the supplier.
h) IT IS MANDATORY TO PROVIDE TWO TAX INVOICE IN ORGINAL ALONGWITH DELIVERY CHALLAN AS PER THE ACTUAL QUANTITY OF ITEMS SUPPLIED ON EACH OCCASSION TO THE FACTORY

Scanned by CamScanner

SO. No. : 2017LPC063 Date : 05/02/2018

Copy to :-

1. The Accounts Officer, Ordnance Factory Dehu Road, Pune 412101 .
   The cost is debitable to Code 269-6A-4/01/810/12
   LP-Private General Stores Trade Sources.
2. Director/Dy.Director Internal Audit Cell AFK, Pune - 411003
3. Office of the Director of Audit,Ordnance Factories,C/o AFK Pune-3
4. The Commissoner of Income Tax , Income Tax Office PUNE -411 001, 411001
5. The Commissoner of Excise Duty, The Commissiorate, Govt.of India.
5. The Commissioner of Commercial Taxes, Govt. of India
7 ORDNANCE FACTORY DEHU ROAD, PUNE - 412 113,
   MAHARASHTRA, 412113

INTERNAL :-

1. UNIT-III
2. STORES
3. QC(M)

Scanned by CamScanner

1. Agent/Agency Commission:
The Seller confirms and declares to the Buyer that the Seller is the original manufacturer of the stores/provider of the services referred to in this Contract and has not engaged any individual or firm, whether Indian or foreign whatsoever, to intercede, facilitate or in any way to recommend to the Government of India or any of its functionaries, whether officially or unofficially, to the award of the contract to the Seller; nor has any amount been paid, promised or intended to be paid to any such individual or firm in respect of any such intercession, facilitation or recommendation. The Seller agrees that if it is estalished at any time to the satisfaction of the Buyer that the present declaration is in any way incorrect or if at a later stage it is discovered by the Buyer that the Seller has engaged any such individual/firm, and paid or intended to pay any amount, gift, reward, fees, commission or consideration to such person, party, firm or institution, whether before or after the signing of this contract, the Seller will be liable to refund that amount to the Buyer. The Seller will also be debarred from entering into any supply Contract with the Government of India for a minimum period of five years. The Buyer will also have a right to consider cancellation of the Contract either wholly or in part, without any entitlement or compensation to the Seller who shall in such an event be liable to refund all payments made by the Buyer in terms of the Contract along with interest at the rate of 2% per annum above LIBOR rate. The Buyer will also have the right to recover any such amount from any contracts concluded earlier with the Government of India.

2. Penalty for use of undue influence:
The Seller undertakes that he has not given, offered or promised to give, directly or indirectly, any gift, consideration, reward, commission, fees, brokerage or inducement to any person in service of the Buyer or otherwise in procuring the Contracts or forbearing to do or for having done or forborne to do any act in relation to the obtaining or execution of the present Contract or any other Contract with the Government of India for showing or forbearing to show favour or difavor to any person in relation to the present Contract or any other Contract with the Government of India. Any breach of the aforesaid undertaking by the Seller or any one employed by him or acting on his behalf (whether with or without the knowledge of the Seller) or the commission of any offers by the Seller or anyone empployed by him or acting on his behalf, as defined in Chapter IX of the Indian Penal Code, 1860 or the Prevention of Corruption Act, 1986 or any other Act enacted for the prevention of corruption shall entitle the Buyer to cancel the contract and all or any other contracts with the Seller and recover from the Seller the amount of any loss arising from such cancellation. A decision of the Buyer or his nominee to effect that a breach of the undertaking had been committed shall be final and binding on the Seller. Giving or offering of any gift, bribe or inducement or any attempt at any such act on behalf of the Seller towards any officer/employee of the Buyer or to any other person in a position to influence any officer/employee of the Buyer for showing any favour in relation to this or any other contract, shall render the Seller to such liability/penalty as the Buyer may deem proper, including but not limited to termination of the contract, imposition of penal damages, forfeiture of the Bank Guarantee and refund of the amounts paid by the Buyer.

3. Access to Book of Accounts:
In case it is found to the satisfaction of the Buyer that the Seller has engaged an Agent or paid commission or influenced any person to obtain the contract as described in clauses relating to Agents/Agency Commission and penalty for use of undue influence, the Seller, on a specific request of the Buyer, shall provide necessary information/inspection of the relevant financial documents/information.

A K RAWAT
Asst. WORKS MANAGER
FOR GENERAL MANAGER
FOR AND ON BEHALF OF THE PRESIDENT OF INDIA

Scanned by CamScanner